

The good attorney knows that in producing unpredictable behavior, only two things compare with a witness on the stand: ~~love~~ love and salvation. To a lawyer, the most honest witness may be a "bad witness" because it seems beforehand that he cannot tell his story with the appearance of sincerity. Yet on the stand such a witness sometimes turns out to be a "good witness". Few people can judge From the testimony of a nervous, disturbed witness, to what degree the disturbance comes from the real evidence and to what degree from the role itself. Some people like an audience; some people don't. ~~One~~ ^{One} of the poorest witnesses I ever observed was an actor.

The most convincing explanation for the amazing unpredictability of witness-stand testimony, it seems to me, is the injustice implicit in any procedure designed to get at the Truth. ^{A man} ~~No man~~ who knows the Truth, or thinks he knows it, ^{doesn't} like to be doubted; ~~just~~ every man who takes the stand faces someone's doubt, and there is always a sense-of-guilt in being thought guilty. And to this is sometimes added the witness' own guilt about something beyond the Law's grasp -- thank God! A man who saw an assault in a bar one night at 11:00 may be a perfectly innocent, reliable witness as to the crime, yet appear to be lying because he wants to conceal from his wife that he was in a bar at that hour ^{of the night.} From flimsier motives than that men have been known to let innocent defendants go to the electric chair to preserve their own domestic harmony.

And ~~what~~ ^{what} a much more appalling prospect the witness-stand is to the average